

Plaintiff shall make a showing on date of motion that dismissal in this case is warranted. This court will allow the presentation of oral evidence on date of motion.

3. 9:00 AM CASE NUMBER: L25-11200
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. DERRICK SHELTON
***HEARING ON MOTION IN RE: TO SET ASIDE ENTRY OF DEFAULT**
FILED BY: SHELTON, DERRICK
***TENTATIVE RULING**

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Defendant filed a Motion to set aside Entry of Default - which was filed on 12/26/25 - under Section 473(b) of the Code of Civil Procedure. Plaintiff filed a response.

Analysis

Defendant cites mistake, inadvertence, or excusable neglect, as a reason – or reasons – for his failure to respond to Plaintiff’s Complaint, yet offers no description for the mistake, inadvertence, or excusable neglect.

It is Defendant’s burden to show the court that at least one of these occurred, yet he has failed to do so.

Disposition

The Motion is denied. Plaintiff shall prepare the Order.

4. 9:00 AM CASE NUMBER: MSL06-05109
CASE NAME: CAVALRY PORTFOLIO SERVICES, LLC VS. MARIA URIBE
***HEARING ON MOTION IN RE: TO VACATE DEFAULT JUDGMENT**
FILED BY: CAVALRY PORTFOLIO SERVICES, LLC
TENTATIVE RULING:

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed a Motion to Set Aside Default Judgment, and dismiss the action, under Section 473 of the CCP, on the basis that the underlying account between Plaintiff and Defendant was the consequence of fraudulent activity against the Defendant.